FIRST AMENDMENTS TO THE CONTRACT OF LEASE

KNOW ALL MEN BY THESE PRESENTS:

This First Amendments to the Contract of Lease (hereinafter referred to as the *"Amendments"*) is entered into by and between:

> **ASEANA HOLDINGS, INC. (AHI)**, a domestic corporation duly organized and existing under the laws of the Republic of the Philippines, with corporate business address at 15th Floor, Aseana 3 Building, along Pres. D. Macapagal Blvd. cor. Asean Ave, Aseana City, Parañaque City, herein represented by its Leasing Manager, **JOHAN RALPH T. MONTES**, hereinafter referred to as the **"LESSOR"**;
>
> - and -
>
> **MARY GRACE FOODS INC.**, a domestic corporation duly organized and existing under the laws of the Republic of the Philippines, with principal place of business at 2985 Mahogany St. United Parañaque Subd. 2 San Martin De Porres Parañaque City, represented by its Managing Director, **ADRIAN P. DIMACALI**, hereinafter referred to as the **"LESSEE"**.

The **LESSOR** and **LESSEE** may also be referred to individually as a "Party" or collectively as the "**Parties**".

WITNESSETH that –

WHEREAS, the **PARTIES** executed a Contract of Lease on February 09, 2023 (hereinafter referred to as *"The Contract"*) pertaining to **Units 109 and 110 with Al-fresco, Ground Floor, PARQAL BUILDING** 1 with a total area of **469.65 sqm.** (referred as the Leased Premises) for a period of Three (3) years beginning on February 01, 2023 until midnight of January 31, 2026;

WHEREAS, upon agreement of the **PARTIES**, the Parties desire to amend the said Contract of Lease specifically: **Article 1 LEASED PREMISES, Item 1.2 Delivery of Leased Premises, First Paragraph; Article 2 LEASE PERIOD, Item 2.1 Lease Period; and Article 3 RENTAL, TAXES, and CHARGES, Item 3.1 Rental, and Item 3.8 Rent-Free Fit-out Period, First Paragraph**, thereof;

WHEREAS, Johan Ralph T. Montes of Aseana Holdings Inc., and Adrian P. Dimacali of Mary Grace Foods Inc. are both authorized by their respective corporations to enter into this First Amendments to the Contract of Lease and execute necessary documents relevant thereto. Copy of their respective certifications in the form of Secretary Certificate are hereto attached as **Annex A** and **Annex B**, respectively, and made an integral part hereof.

NOW, THEREFORE, for and in consideration of the foregoing premises, the Parties hereby agreed to amend the above-mentioned Contract of Lease as follows:

1. **Article 1 (Leased Premises), Item 1.2 (Delivery of Leased Premises), First Paragraph** shall be amended and to be read as follows:

   "Item 1.2 Delivery of Leased Premises

The Leased Premises shall be handed over to the **LESSEE** on **February 03, 2023**, subject to the compliance with PARQAL Building House Rules and PARQAL Construction and Fit-Out Guidelines, and fulfillment of all the requirements necessary for handover, including payments of financial obligations, stated in this Contract and in the lease offer sheet have been made by the **LESSEE**.

xxx."

2. **Article 2 (Lease Period), Item 2.1 (Lease Period)** shall be amended and to be read as follows:

"Item 2.1 Lease Period

This Contract shall be for a period of **Three (3) YEARS** beginning on **September 30, 2023** and ending on midnight of **September 29, 2026** (hereinafter the "Lease Period"), unless earlier terminated by reason of default or breach on the part of the **LESSEE**, or pursuant to the provisions of this Contract."

3. **Article 3 (RENTAL, TAXES AND CHARGES), Item 3.1 (RENTAL)** shall be amended and to be read as follows:

"Item 3.1 Rental

Rental charges shall be computed and paid as follows:

Table 1. Base Rental (Exclusive of VAT)

Year	Rent Schedule	Area (in square meters)	Monthly Minimum Guaranteed Rental Per Square Meter (in Pesos)	Annual Escalation Rate	Gross Product Sales (in Percentage)
Year 1	September 30, 2023 to September 29, 2024	469.65	N/A	N/A	7%
Year 2	September 30, 2024 to September 29, 2025	469.65	Nine Hundred Pesos (Php 900.00)	N/A	7%
Year 3	September 30, 2025 to September 29, 2026	469.65	Nine Hundred Sixty-Three Pesos (Php 963.00)	7%	7%

xxx"

4. **Article 3, Item 3.8 (RENT FREE FIT-OUT PERIOD)** shall be amended and to be read as follows:

"Item 3.8 Rent-Free Fit Out Period

"The **LESSEE** shall be given a rent-free period of Two Hundred Thirty-Nine (239) days to conduct its fit-out activities on the Leased Premises commencing on the

Hand-over Date or on **February 03, 2023**. For the avoidance of doubt, the rent-free period shall end on **September 29, 2023**. However, should **LESSEE** start its operation before **September 30, 2023**, the rent-free period shall automatically be terminated and **LESSEE** shall be liable to pay the monthly rentals starting the date started its business operation.

xxx"

5. The **LESSEE** and the **LESSOR** warrant faithful compliance with the foregoing First Amendments and the remaining provisions of the same Contract of Lease dated February 09, 2023.

6. The Parties agreed that all the other provisions of the Contract of Lease dated February 09, 2023 not affected by the foregoing First Amendments shall remain in full force and effect and binding upon the Parties until the termination, expiration or pre-termination of the said Contract of Lease.

7. The First Amendments to the Contract of Lease shall be effective only upon receipt of the **LESSOR** of the duly signed First Amendments to the Contract of Lease and full satisfaction of all the documentary and financial obligations of the **LESSEE** to the **LESSOR**, including but not limited to the satisfaction of the Advance Rental and Security Deposit under this Amendments (if any is still due).

IN WITNESS WHEREOF, this First Amendments to the Contract of Lease have been signed by the respective authorized representative of the PARTIES on this day of _____ in _____.

ASEANA HOLDINGS INC.
BY:

JOHAN RALPH T. MONTES
LEASING MANAGER

MARY GRACE FOODS INC
BY:

ADRIAN P. DIMACALI
MANAGING DIRECTOR

Signed in the presence of:

JOY M. MONTOYO

Christine Joy Belmas-Acibar
Finance Supervisor
Date:

ACKNOWLEDGMENT

Republic of the Philippines }
_____ } S. S.

BEFORE ME, a Notary Public for and in _____ this day of _____, personally appeared the following and presented their respective government-issued identification cards as competent evidence of their identities:

Name	Government-issued ID No.	Date and Place of Issue
ASEANA HOLDINGS INC. BY JOHAN RALPH T. MONTES	BIR TIN ID NO. 413-021-209	May 21, 2012 / Manila
MARY GRACE FOODS INC BY: ADRIAN P. DIMACALI	Philippine Passport ID. No. P7271334A	May 22, 2018 DFA Manila

both known to me to be the same persons who executed the foregoing First Amendments to the Contract of Lease and acknowledged to me that the same is their free voluntary act and deed and likewise that of the corporations which they respectively represent.

This instrument consisting of **4 pages** including this page wherein the acknowledgment is written and signed by the parties and their witnesses on each and every page hereof.

Notary Public

Doc. No.: _____;
Page No.: _____;
Book No.: _____;
Series of 2024.